

Court No. - 1

Case :- WRIT - C No. - 2305 of 2020

Petitioner :- Prem Veer Singh And 3 Others

Respondent :- D.V.V.N.L. And Another

Counsel for Petitioner :- Vishal Agarwal

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri Vishal Agarwal, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel appearing for the respondent Corporation.

As prayed, list on 5th February, 2020. In the meanwhile, Sri Baleshwar Chaturvedi, learned counsel for respondent Corporation shall have instructions in the matter.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 23.1.2020/NS

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Counsel for Petitioner :- Vishal Agarwal

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Pursuant to the earlier order of this Court dated 23rd January, 2020, instructions have been placed before this Court by Ms. Usha Kiran, learned counsel for the respondent Nos. 1 & 2, which are taken on record.

Heard Sri Vishal Agarwal, learned counsel for the petitioners, Ms. Usha Kiran, learned counsel for the respondent Nos. 1 & 2 and perused the record.

The controversy involved in the present case is regarding disconnection of the electricity connection of the petitioner's tube-well on the ground that it was being unauthorizedly used by one Raghuvir Singh, who happens to be brother of the petitioner Nos. 2, 3 and 4 and is in the joint tenancy of the agricultural holdings.

It is argued by the learned counsel for the petitioners that since Raghuvir Singh was having unauthorized use of electricity thieving by connecting wire to the tube-well, they made a complaint and it is on that basis the electricity supply has come to be disconnected. However, now the petitioners want that at least electricity connection to their tube-well may be restored.

It transpires from the pleadings as have come up to be raised and also admitted to the petitioners that in view of the joint tenancy of the agriculture holdings which belonged to one Ganga Singh, question of no objection would be necessary for the grant of electricity connection as the connection stood in the name of Ganga Singh and any connection would be joint one unless there is a partition of holdings amongst the heirs of late Ganga Singh.

Learned counsel for the Electricity Department submits that the petitioners have an opportunity to apply for a fresh connection by making an appropriate application and by making requisite deposit along with an affidavit as required vide Annexure 4.2 of U.P. Electricity Supply Code, 2005 and if the petitioners

submit any such application, the same would be dealt with in accordance with law.

To the above argument, learned counsel for the petitioners does not have any objection and he submits that petitioners are ready to apply for a fresh connection.

In view of the above, we are disposing of the writ petition with a direction to the petitioner to make appropriate application for electricity connection afresh for their tube-well by making such deposit as is required under the law along with an affidavit as required under Annexure 4.2 of the U.P. Electricity Supply Code, 2005 and we further provide that in case if such an application is made within a period of four weeks from today, the same shall be considered strictly in accordance the law by respondent No.2 and final order shall be passed within a period of four weeks thereafter.

Order Date :- 5.2.2020

Atmesh

(Ajit Kumar,J.) (Ramesh Sinha,J.)